

Terms and Conditions

S.No.	Validity of this NOC shall be subject to compliance of the following conditions:
1	specific conditions: 1.0. Industrial Use
2	Construction of observation well (s) (Piezometer)(s) within the premises and installation of appropriate water level monitoring mechanism for industries drawing/proposing to draw more than 100 m ³ /day of ground water for Hard rock aquifer type and more than 500 m ³ /day of ground water for Alluvium aquifer type. Detailed guidelines for construction of piezometers are given in Annexure-2.
3	Monthly water level data shall be submitted to the Ground Water Department through online portal.
4	Injection of treated/ untreated wastewater into the aquifer system will be strictly prohibited.
5	Polluting industries listed in Annexure-3, need to undertake necessary well head protection measures to ensure the prevention of ground water pollution.
6	Prohibition: - No objection certificate shall not be granted to new packaged water industries in over-exploited areas, even if they belong to MSME category.
7	specific conditions: 2.0. Mining Projects
8	Construction of observation well(s) (piezometers) along the periphery of the premises for monthly ground water level monitoring shall be mandatory for mines drawing/ proposing to draw more than 100 m ³ /day of ground water.
9	The proponent shall monitor groundwater levels by establishing observation wells (piezometers) in the core and buffer zones as specified in the No Objection Certificate.
10	It shall be mandatory to ensure that water available from dewatering operations is properly treated to avoid contamination of surface water and should be gainfully utilized for supply for irrigation, dust suppression, mining process, recharge in downstream and for maintaining e-flows in the river system.
11	Mining unit shall also monitor the water quality of mine seepage and mine discharge through NABL-accredited/Govt. approved laboratories, and the same shall be submitted through online portal.
12	specific conditions: 3.0. Other than Industrial and Mining Projects
13	The No Objection Certificate for ground water abstraction will be granted subject to the condition that proponent shall be required to carry out regular monitoring of dewatering discharge rate using a digital water flow meter and submit the data to the Ground Water Department through online portal.
14	Monitoring records and results should be retained by the proponent for two years for inspection or reporting as required by Ground Water Department.
15	This NOC is subject to prevailing Central/State Government rules/laws/norms or Court orders related to construction of tube well/ground water abstraction structure / recharge or conservation structure/discharge of effluents or any such matter as applicable
16	General conditions:
17	Installation of tamper proof BIS/IS standards digital water flow meter having telemetry system in the abstraction structure(s) shall be mandatory for all users seeking No Objection Certificate, and intimation regarding their installation shall be communicated to the Ground Water Department within 30 days of the grant of No Objection Certificate.
18	Proponents shall pay Ground Water Abstraction charges based on the quantum of ground water extraction as applicable as per the rates.
19	Proponents shall monitor quality of ground water from the abstraction structure(s) once in a year and provide water quality data to Ground Water Department through online portal.
20	No Objection Certificate will be revoked, if proponent is failed to comply the conditions of No Objection Certificate or submission of false documents/ information with application.
21	Monitoring of Compliance of No Objection Certificate Conditions
22	District Collectors would take enforcement measures like sealing unauthorized ground water abstraction structures, disconnection of electricity against those violating the No Objection Certificate conditions and taking action for imposition of Environmental Compensation.
23	In case of violation of any of the No Objection Certificate conditions, the proponents shall be liable to pay the penalties as per Annexure 5.
24	Provision of Penalty
25	Penalty shall be imposed on the proponents for non-compliance of No Objection Certificate's conditions issued by the Competent Authority. Rates of penalty proposed for non-compliance of various conditions of No Objection Certificate are given in Annexure 5. The rates of penalty may be reviewed periodically

26	Environmental Compensation
27	Extraction of ground water for commercial use by industries, Other than Industrial and Mining units and mining projects without a valid No Objection Certificate from appropriate authority shall be considered illegal and such entities shall be liable to pay Environmental Compensation for the quantum of ground water so extracted. The method to calculate the Environmental compensation as mentioned below:
28	ECGW= 15 times for charges prescribed of ground water abstraction as per Annexure 1 x No. of days
29	Where groundwater consumption is in m ³ /day and ECRGW in Rs./cum.
30	The proponent shall seek prior permission from this office for any increase in quantum of groundwater abstraction (more than that permitted in NOC for specific period).
31	Proponents shall install roof top rain water harvesting in the premise as per the existing building bye laws .
32	In case of industries that are likely to contaminate the ground water, no recharge measures shall be taken up by the firm inside the plant premises. The runoff generated from the rooftop shall be stored and put to beneficial use by the firm.
33	Wherever feasible, requirement of water for greenbelt (horticulture) shall be met from recycled / treated waste water.
34	In case of violation of any NOC conditions, the applicant shall be liable to pay the penalties as per Notification.
35	This NOC does not absolve the proponents of their obligation / requirement to obtain other statutory and administrative clearances from appropriate authorities.
36	The issue of this NOC does not imply that other statutory / administrative clearances shall be granted to the project by the concerned authorities. Such authorities would consider the project on merits and take decisions independently of the NOC.
37	This NOC is being issued without any prejudice to the directions of the Hon'ble NGT/court orders in cases related to ground water or any other related matters.
38	The NOC issued is conditional subject to the conditions mentioned in the Gazette Notification dated 10.02.2025 failing which penalty/EC/cancellation of NOC shall be imposed as the case may be.
39	The proponent shall confirm that Drilling Agency/ Agencies, which has/ have constructed BW(s)/ TW(s) along with undertaking to the effect that all necessary measures have been taken as per directions of Hon'ble Supreme Court provided in Annexure-VII of guidelines dated 24.09.2020 in respect of abandoned/ failed BW(s)/ TW(s)/Piezometer(s), if any. The Firm is advised to engage registered drilling agency/ agencies. In the event of any mishap/ unfortunate incident due to negligence in taking measures for prevention of accident due to falling in Bore Well, both PP and concerned drilling agency shall jointly be held responsible and penal action as per extant Government rules shall be taken.
	(Non-compliance of the conditions mentioned above is likely to result in the cancellation of NOC and legal action against the proponent.)